

**BEFORE THE
OFFICE OF ADMINISTRATIVE HEARINGS
STATE OF CALIFORNIA**

**In the Matter of the Motion for Immediate Reversal of
Suspension of:**

CHARITY GUPTILL, Moving Party,

A Permanent Certificated Employee,

and

**PALERMO UNION ELEMENTARY SCHOOL DISTRICT,
Responding Party.**

OAH No. 2025110060

**ORDER GRANTING MOTION FOR IMMEDIATE REVERSAL OF
SUSPENSION**

Administrative Law Judge Mary Agnes Matyszewski, Office of Administrative Hearings (OAH), State of California, heard oral argument on this matter on November 21, 2025, by videoconference.

Katrina Gould, Attorney at Law, Langenkamp Curtis Price Lindstrom & Chevedden, LLP, represented moving party, Charity Guptill.

Christian Keiner, Attorney at Law, Dannis Woliver Kelley, represented Palermo Union Elementary School District (district).

The parties' oral arguments were heard, and the matter was submitted on November 21, 2025.

Motion for Immediate Reversal of Suspension

A school district may immediately suspend without pay a permanent certificated employee charged with immoral conduct or charged with willful refusal to perform regular assignments without reasonable cause as prescribed by reasonable rules and regulations of the district. (Ed. Code, § 44939, subd. (b).) A suspended employee may file a motion for immediate reversal of the suspension with OAH. (Ed. Code, § 44939, subd. (c)(1).) An administrative judge's review of the suspended employee's motion shall be "limited to a determination as to whether the facts as alleged in the Statement of Charges, if true, are sufficient to constitute a basis for immediate suspension under this section." (Ed. Code, § 44939, subd. (c)(1).)

Although the administrative law judge must accept well-pleaded facts in the Statement of Charges as true, the administrative law judge need not accept contentions, deductions, or conclusions of fact or law. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) Conclusory characterizations of conduct as intentional, willful, or fraudulent are "patently insufficient." (*Brousseau v. Jarrett* (1977) 73 Cal.App.3d 864, 872.) Where reading the allegations reveals the existence of an affirmative defense, the complaining party must plead around the defense by alleging specific facts that would avoid the apparent defense. (*Blank, supra*, 39 Cal.3d at p. 318.)

On October 31, 2025, Ms. Guptill filed her Motion for Immediate Reversal of Suspension with OAH, pursuant to Education Code section 44939, subdivision (c)(1). OAH set the matter for oral argument and established a briefing schedule.

Statement of Charges

On October 1, 2025, the district filed the Statement of Charges and Notice of Suspension seeking the immediate suspension without pay and dismissal of Ms. Guptill, a permanent certificated employee. Ms. Guptill is a teacher and Preschool Site Supervisor at a preschool licensed by the California Department of Social Services (department). Attendance at the preschool is voluntary and requires attendees to monthly pay fees to attend. As a department licensee, the preschool is regulated by California Code of Regulations, title 22. As required, the preschool must provide care and supervision as necessary to meet the children's needs and no child may be left without supervision of a teacher at any time, which includes visual observation, except in certain limited situations not applicable here. (Cal. Code Regs., tit. 22, § 101229.)

The district alleged that on June 27, 2025, Ms. Guptill left Student A, then four years old, locked in the classroom when she and others left with the preschool students for a field trip. Student A was not discovered to be missing during the headcount when everyone boarded the bus for the field trip. When students were recounted at the destination, Student A was discovered missing. The district alleged when Ms. Guptill returned to campus she was "shaken up" and "frazzled" and "not maintaining a 'calm and collected demeanor' in relating to Student A."

The district's investigation determined Ms. Guptill failed to conduct an accurate and verified headcount, failed to take roll prior to leaving on the bus, and failed to ensure all students were accounted for prior to departure. The investigation found

further: "Despite identifying a discrepancy in the count (15 instead of 16), [Ms. Guptill] proceeded to leave campus based on unverified counts by others. The failure to confirm attendance, lack of direct supervision, and reliance on aides along with the admission of distraction and lack of preparation, demonstrate gross negligence." As a result of the incident, the district was required to submit a report of an unusual incident to the department which led to the department issuing a citation. The district was also required to submit a report to Child Protective Services.

The Statement of Charges alleged further that previously on April 18, 2024, the district issued a letter of reprimand to Ms. Guptill for her conduct that occurred on April 16, 2024, as follows: Ms. Guptill was using her cell phone to text repeatedly while supervising a child; repeatedly failed to keep that child in view; took that child to an area on campus that was open to the public and where exterior gates were opened to a busy street and parking lot; and her conduct violated California Code of Regulations, title 22, section 101229. The letter of reprimand advised Ms. Guptill that her conduct adversely impacted the child's safety, exposed the district to possible liability, and adversely impacted the child's personal rights.

The Statement of Issues further alleged that the district issued a letter of reprimand to Ms. Guptill on November 6, 2024, for her failure to supervise children in care because she was on her cell phone, repeatedly failed to keep children in view, and because at pickup she failed to confirm the identification of an adult whom she had never met and who was not on the pickup list, putting the child at risk of leaving with an unauthorized adult. The letter of reprimand advised Ms. Guptill that effective immediately, she was to follow district, Title 22, and Title 5 procedures and properly supervise students in care, ensure their safe departure, and verify adults' identities.

The Statement of Charges contained several grounds for dismissal: immoral conduct, unprofessional conduct, evident unfitness for service, persistent violation of or refusal to obey the school laws of the state or reasonable regulations prescribed for the government of the public schools by the state board or by the governing board of the school district. (Ed. Code, §§ 44932, subds. (a)(1), (a)(2), (a)(6), & (a)(8).) The district suspended Ms. Guptill without pay pending a hearing before a Commission on Professional Competence.

Of note, the Statement of Charges incorrectly referenced Education Code section 48932, subdivision (a)(1), for the immoral conduct charge, but section 48932 pertains to student organizations and does not contain subdivisions. Presumably the district meant section 44932, subdivision (a)(1), the section for immoral conduct.

Parties' Arguments

Ms. Guptill asserted that her conduct, including her reliance on aides and leaving Student A behind did not rise to level of immoral conduct. Further, she argued that the district's assertions regarding her frantic behavior when she returned to the site supports her position that this was a situation she took seriously. She further asserted that the two incidents which led to the letters of reprimand involved times when she was distracted and failed to check proper identification, but, again, do not rise the level of immoral conduct. Ms. Guptill also argued that the district did not allege willful refusal to perform her assignments in the Statement of Charges.

The district asserted that Ms. Guptill's actions constituted immoral conduct, noting the high moral standards that teachers must possess because they are entrusted to care for children. The district cited to several cases which found the teacher's actions constituted immoral conduct, arguing that Ms. Guptill's actions fell

within the types of acts referenced. The district argued that it was cited because of Ms. Guptill's actions and faces the possibility that the preschool may be shut down. The district also argued that Ms. Guptill's acts of willfully leaving the school site without conducting a proper headcount constitutes willful conduct supporting her unpaid suspension. The district asserted it did allege willful refusal to perform assignments in the Statement of Charges.

Immoral Conduct Analysis

There is broad discretion in determining what constitutes immoral conduct in the context of teacher disciplinary matters. (*California Teachers Association v. State of California* (1999) 20 Cal.4th 327.) The definition of immoral conduct must be considered in conjunction with the unique position of public school teachers, upon whom are imposed "responsibilities and limitations on freedom of action which do not exist in regard to other callings." (*Board of Trustees v. Stubblefield* (1971) 16 Cal.App.3d 820, 824; *San Diego Unified School District v. Commission on Professional Competence* (2011) 194 Cal.App.4th 1454, 1466.)

Immoral conduct is not considered in the abstract but must be considered in the context in which the Legislature considered it, as conduct which is hostile to the welfare of the general public; more specifically, conduct which is hostile to the welfare of the school community. (*Morrison v. State Board of Education* (1969) 1 Cal.3d 214, 224; *Crawford v. Commission on Professional Competence* (2020) 53 Cal.App.5th 339, 337.) It has been defined as that which is hostile to the welfare of the general public and contrary to good morals. It has not been limited to sexual matters, but includes conduct inconsistent with rectitude, or indicative of corruption, indecency, depravity, dissoluteness; or as wilful, flagrant, or shameless conduct showing moral indifference to the opinions of respectable members of the community, and as an inconsiderate

attitude toward good order and the public welfare. (*Board of Education of San Francisco Unified School District v. Weiland* (1960) 179 Cal.App.2d 808, 811; *Palo Verde etc. School District v. Hensey* (1970) 9 Cal.App.3d 967, 972.)

Having considered the pleadings, written submissions, and oral arguments, the district did not allege facts which, if true, could constitute immoral conduct, as that term has been defined, and are insufficient to establish a basis for immediate suspension under Education Code section 44939, subdivision (b). At best, Ms. Guptill's actions were negligent, she made a grave mistake, but the facts do not support a finding that her actions were depraved, indecent, corrupt, willful, flagrant or shameful, or were the type of actions the case law references. In fact, the district's own investigation determined Ms. Guptill committed three failures. Although the district concluded her actions constituted gross negligence, the administrative law judge need not accept that conclusion. (*Blank, supra.*) Here, the facts show Ms. Guptill made a mistake, a finding further supported by the reference in the Statement of Charges to Ms. Guptill's demeanor when she returned to campus. While she does have two letters of reprimand in 2024 for her failure to properly supervise children, those past incidents also showed negligence and not immoral conduct.

Willful Violation Analysis

The District did not *charge* Ms. Guptill with willful refusal as a cause for termination; instead, the district charged her persistent violation of or refusal to obey the school laws of the state or reasonable regulations prescribed for the government of the public schools by the state board or by the governing board of the school district employing her under Education Code section 44932, subdivision (a)(8), which is not a basis to immediately suspend Ms. Guptill. The district asserts it has "more than sufficiently alleged facts supporting suspension on grounds of her willful refusal to

perform her regular assignments without reasonable cause.” The district cites to the various documents given to Ms. Guptill in support of its position. It argues that Ms. Guptill’s failure to follow those directives, policies, etc., show she willfully refused to comply. Based on a fair reading of Education Code section 44939, subdivision (b), the district’s argument is not persuasive.

The use of the “charging” in subdivision (b) is a clear expression of legislative intent that requires a district to charge the teacher with the conduct that is the basis to immediately suspend him or her. The dictionary definition of “charge” is: “to make an assertion against by ascribing guilt or blame” or “to assert as an accusation.” (www.merriam-webster.com/dictionary/charge.) To conclude that a district does not need to charge a teacher with the conduct that is the basis of the immediate suspension, would render the word “charging” in Education Code section 44939, subdivision (b), superfluous and meaningless. (“In analyzing statutory language, we seek to give meaning to every word and phrase in the statute to accomplish a result consistent with the legislative purpose. . . .” (*California Teachers Assn. v. Governing Bd. of Rialto Unified School District* (1997) 14 Cal. 4th 627 at p. 634 (citations omitted).)

Accordingly, because the district did not charge Ms. Guptill with “willful refusal,” the district is not authorized under Education Code section 44939, subdivision (b), to immediately suspend her and may not suspend her without pay. Due to this conclusion, it is unnecessary to address whether the allegations contained in the Statement of Charges are sufficient to allege willful refusal.

ORDER

Good cause having been established, the Motion for Immediate Reversal of Suspension is GRANTED. The district's immediate suspension of Ms. Guptill is OVERTURNED. The district shall immediately return Ms. Guptill to paid status. The district shall make Ms. Guptill whole for any lost wages, benefits, and compensation within 14 days after service of this Order. (Ed. Code, § 44939, subd. (c)(5).)

DATE: November 25, 2025

Mary Agnes Matyszewski
Mary Agnes Matyszewski (Nov 25, 2025 15:50:29 PST)
MARY AGNES MATYSZEWSKI

Administrative Law Judge

Office of Administrative Hearings